

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES				1. REQUISITION NO.		PAGE 1 OF 104	
OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30							
2. CONTRACT NO.		3. AWARD/EFFECTIVE DATE		4. ORDER NO.		5. SOLICITATION NUMBER 36C24526Q0376	
7. FOR SOLICITATION INFORMATION CALL:		a. NAME Keysha Gorman				b. TELEPHONE NO. (No Collect Calls) 410-637-1509	
9. ISSUED BY Department of Veterans Affairs VISN 5 NCO 5 ATTN: Keysha Gorman SUITE 275 849 INTERNATIONAL DRIVE LINTHICUM MD 21090				10. THIS ACQUISITION IS ☒ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR: ☒ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM ☐ EDWOSB ☐ 8(A) NAICS: 541511 SIZE STANDARD: \$34 Million			
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700) ☐		13b. RATING N/A	
15. DELIVER TO Department of Veterans Affairs VISN 5 NCO 5 ATTN: Keysha Gorman SUITE 275 849 INTERNATIONAL DRIVE LINTHICUM MD 21090		16. ADMINISTERED BY Department of Veterans Affairs VISN 5 NCO 5 ATTN: Keysha Gorman SUITE 275 849 INTERNATIONAL DRIVE LINTHICUM MD 21090		14. METHOD OF SOLICITATION ☒ RFQ ☐ IFB ☐ RFP			
17a. CONTRACTOR/OFFEROR		18a. PAYMENT WILL BE MADE BY		19. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER ☐			
TELEPHONE NO.		FACILITY CODE		20. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
CODE		CODE		21. QUANTITY			
CODE		CODE		22. UNIT			
CODE		CODE		23. UNIT PRICE			
CODE		CODE		24. AMOUNT			
19. ITEM NO.		20. See CONTINUATION Page SCHEDULE OF SUPPLIES/SERVICES		25. ACCOUNTING AND APPROPRIATION DATA See CONTINUATION Page			
VISN Wide solicitation for VISN 5 has a need for continual as-built drawing update service through a Blanket Purchase Agreement (BPA). VISN 5 is a fully integrated network of eight (8) VA medical campuses and multiple VA Community Clinics. See Statement of Work for list of locations. Period of Performance 4/15/2026-4/14/2030 Blanket Purchase Agreement. Submit all questions by 3/25/2026 to Keysha.Gorman74@va.gov . Quotes are due by 3/31/2026 at 8am to Keysha.Gorman74@va.gov . (Use Reverse and/or Attach Additional Sheets as Necessary)							
25. ACCOUNTING AND APPROPRIATION DATA		26. TOTAL AWARD AMOUNT (For Govt. Use Only)					
27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA		27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA		28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED			
27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA		27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA		29. AWARD OF CONTRACT: REF. OFFER DATED (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN IS ACCEPTED AS TO ITEMS:			
30a. SIGNATURE OF OFFEROR/CONTRACTOR		31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)					
30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT) Amy Walter		31c. DATE SIGNED	

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SECTION B - CONTINUATION OF SF 1449 BLOCKS

B.1 CONTRACT ADMINISTRATION DATA

1. Contract Administration: All contract administration matters will be handled by the following individuals:

a. CONTRACTOR:

b. GOVERNMENT: Contracting Officer 36C245 Keysha.Gorman74@va.gov
 Department of Veterans Affairs
 VAMC
 Keysha Gorman
 10 N Greene St
 Baltimore MD 21201

2. CONTRACTOR REMITTANCE ADDRESS: All payments by the Government to the contractor will be made in accordance with:

☒ 52.232-33, Payment by Electronic Funds Transfer—System for Award Management, or

☐ 52.232-36, Payment by Third Party

3. INVOICES: Invoices shall be submitted in arrears:

- a. Quarterly ☐
- b. Semi-Annually ☐
- c. Other ☒ Monthly

4. GOVERNMENT INVOICE ADDRESS: All Invoices from the contractor shall be submitted electronically in accordance with VAAR Clause 852.232-72 Electronic Submission of Payment Requests.

<http://www.fsc.va.gov/einvoice.asp>

ACKNOWLEDGMENT OF AMENDMENTS: The offeror acknowledges receipt of amendments to the Solicitation numbered and dated as follows:

AMENDMENT NO	DATE

B.2 PRICE/COST SCHEDULE

ITEM INFORMATION

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	SaaS: Space Module (as-builts, CAI, plan room, employee) Contract Period: Base POP Begin: 04-15-2026 POP End: 04-14-2027 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
0002	SaaS: Utilities Module (Fire and Life Safety, utilities, telecom) Contract Period: Base POP Begin: 04-15-2026 POP End: 04-14-2027 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
0003	SaaS: BIM Contract Period: Base POP Begin: 04-15-2026 POP End: 04-14-2027 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
0004	SaaS: Scheduling Module Contract Period: Base POP Begin: 04-15-2026 POP End: 04-14-2027 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
0005	SaaS: Tracking Module Contract Period: Base POP Begin: 04-15-2026 POP End: 04-14-2027 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
0006	Unlimited software: Space Module Contract Period: Base POP Begin: 04-15-2026 POP End: 04-14-2027 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
0007	Unlimited software: Utilities module Contract Period: Base	1.00	EA		

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	POP Begin: 04-15-2026 POP End: 04-14-2027 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical				
0008	Unlimited software: Scheduling Module Contract Period: Base POP Begin: 04-15-2026 POP End: 04-14-2027 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
0009	Unlimited software: Tracking Module Contract Period: Base POP Begin: 04-15-2026 POP End: 04-14-2027 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
0010	Digitizing paper files Contract Period: Base POP Begin: 04-15-2026 POP End: 04-14-2027 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
0011	Developing CAD drawings Contract Period: Base POP Begin: 04-15-2026 POP End: 04-14-2027 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
0012	As-builts software module implementation Contract Period: Base POP Begin: 04-15-2026 POP End: 04-14-2027 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
0013	Space management software module implementation Contract Period: Base POP Begin: 04-15-2026 POP End: 04-14-2027 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
0014	Plan room software module implementation Contract Period: Base	1.00	EA		

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	POP Begin: 04-15-2026 POP End: 04-14-2027 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical				
0015	Employee software module implementation Contract Period: Base POP Begin: 04-15-2026 POP End: 04-14-2027 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
0016	Fire and life safety software module implementation Contract Period: Base POP Begin: 04-15-2026 POP End: 04-14-2027 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
0017	Developing BIM Contract Period: Base POP Begin: 04-15-2026 POP End: 04-14-2027 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
0018	Utilities software module implementation Contract Period: Base POP Begin: 04-15-2026 POP End: 04-14-2027 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
0019	Telecom software module implementation Contract Period: Base POP Begin: 04-15-2026 POP End: 04-14-2027 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
0020	Scheduling software module implementation Contract Period: Base POP Begin: 04-15-2026 POP End: 04-14-2027 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
0021	Tracking module implementation Contract Period: Base	1.00	EA		

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	POP Begin: 04-15-2026 POP End: 04-14-2027 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical				
0022	Tracking sensor cost Contract Period: Base POP Begin: 04-15-2026 POP End: 04-14-2027 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
0023	Tracking gateway cost Contract Period: Base POP Begin: 04-15-2026 POP End: 04-14-2027 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
0024	Cellular network fee Contract Period: Base POP Begin: 04-15-2026 POP End: 04-14-2027 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
0025	Architectural field verification Contract Period: Base POP Begin: 04-15-2026 POP End: 04-14-2027 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
1001	SaaS: Space Module (as-builts, CAI, plan room, employee) Contract Period: Option 1 POP Begin: 04-15-2027 POP End: 04-14-2028 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
1002	SaaS: Utilities Module (Fire and Life Safety, utilities, telecom) Contract Period: Option 1 POP Begin: 04-15-2027 POP End: 04-14-2028 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
1003	SaaS: BIM Contract Period: Option 1	1.00	EA		

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	POP Begin: 04-15-2027 POP End: 04-14-2028 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical				
1004	SaaS: Scheduling Module Contract Period: Option 1 POP Begin: 04-15-2027 POP End: 04-14-2028 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
1005	SaaS: Tracking Module Contract Period: Option 1 POP Begin: 04-15-2027 POP End: 04-14-2028 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
1006	Unlimited software: Space Module Contract Period: Option 1 POP Begin: 04-15-2027 POP End: 04-14-2028 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
1007	Unlimited software: Utilities module Contract Period: Option 1 POP Begin: 04-15-2027 POP End: 04-14-2028 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
1008	Unlimited software: Scheduling Module Contract Period: Option 1 POP Begin: 04-15-2027 POP End: 04-14-2028 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
1009	Unlimited software: Tracking Module Contract Period: Option 1 POP Begin: 04-15-2027 POP End: 04-14-2028 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
1010	Digitizing paper files Contract Period: Option 1	1.00	EA		

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	POP Begin: 04-15-2027 POP End: 04-14-2028 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical				
1011	Developing CAD drawings Contract Period: Option 1 POP Begin: 04-15-2027 POP End: 04-14-2028 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
1012	As-builts software module implementation Contract Period: Option 1 POP Begin: 04-15-2027 POP End: 04-13-2028 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
1013	Space management software module implementation Contract Period: Option 1 POP Begin: 04-15-2027 POP End: 04-14-2028 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
1014	Plan room software module implementation Contract Period: Option 1 POP Begin: 04-15-2027 POP End: 04-14-2028 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
1015	Employee software module implementation Contract Period: Option 1 POP Begin: 04-15-2027 POP End: 04-14-2028 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
1016	Fire and life safety software module implementation Contract Period: Option 1 POP Begin: 04-15-2027 POP End: 04-14-2028 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
1017	Developing BIM Contract Period: Option 1	1.00	EA		

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	POP Begin: 04-15-2027 POP End: 04-14-2028 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical				
1018	Utilities software module implementation Contract Period: Option 1 POP Begin: 04-15-2027 POP End: 04-14-2028 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
1019	Telecom software module implementation Contract Period: Option 1 POP Begin: 04-15-2027 POP End: 04-14-2028 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
1020	Tracking module implementation Contract Period: Option 1 POP Begin: 04-15-2027 POP End: 04-14-2028 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
1021	Scheduling software module implementation Contract Period: Option 1 POP Begin: 04-15-2027 POP End: 04-14-2028 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
1022	Tracking sensor cost Contract Period: Option 1 POP Begin: 04-15-2027 POP End: 04-14-2028 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
1023	Tracking gateway cost Contract Period: Option 1 POP Begin: 04-15-2027 POP End: 04-14-2028 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
1024	Cellular network fee Contract Period: Option 1	1.00	EA		

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	POP Begin: 04-15-2027 POP End: 04-14-2028 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical				
1025	Architectural field verification Contract Period: Option 1 POP Begin: 04-15-2027 POP End: 04-14-2028 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
2001	SaaS: Space Module (as-builts, CAI, plan room, employee) Contract Period: Option 2 POP Begin: 04-15-2028 POP End: 04-14-2029 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
2002	SaaS: Utilities Module (Fire and Life Safety, utilities, telecom) Contract Period: Option 2 POP Begin: 04-15-2028 POP End: 04-14-2029 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
2003	SaaS: BIM Contract Period: Option 2 POP Begin: 04-15-2028 POP End: 04-14-2029 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
2004	SaaS: Scheduling Module Contract Period: Option 2 POP Begin: 04-15-2028 POP End: 04-14-2029 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
2005	SaaS: Tracking Module Contract Period: Option 2 POP Begin: 04-15-2028 POP End: 04-14-2029 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
2006	Unlimited software: Space Module Contract Period: Option 2	1.00	EA		

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	POP Begin: 04-15-2028 POP End: 04-14-2029 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical				
2007	Unlimited software: Utilities module Contract Period: Option 2 POP Begin: 04-15-2028 POP End: 04-14-2029 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
2008	Unlimited software: Scheduling Module Contract Period: Option 2 POP Begin: 04-15-2028 POP End: 04-14-2029 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
2009	Unlimited software: Tracking Module Contract Period: Option 2 POP Begin: 04-15-2028 POP End: 04-14-2029 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
2010	Digitizing paper files Contract Period: Option 2 POP Begin: 04-15-2028 POP End: 04-14-2029 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
2011	Developing CAD drawings Contract Period: Option 2 POP Begin: 04-15-2028 POP End: 04-14-2029 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
2012	As-builts software module implementation Contract Period: Option 2 POP Begin: 04-15-2028 POP End: 04-14-2029 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
2013	Space management software module implementation Contract Period: Option 2	1.00	EA		

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	POP Begin: 04-15-2028 POP End: 04-14-2029 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical				
2014	Plan room software module implementation Contract Period: Option 2 POP Begin: 04-15-2028 POP End: 04-14-2029 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
2015	Employee software module implementation Contract Period: Option 2 POP Begin: 04-15-2028 POP End: 04-14-2029 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
2016	Fire and life safety software module implementation Contract Period: Option 2 POP Begin: 04-15-2028 POP End: 04-14-2029 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
2017	Developing BIM Contract Period: Option 2 POP Begin: 04-15-2028 POP End: 04-14-2029 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
2018	Utilities software module implementation Contract Period: Option 2 POP Begin: 04-15-2028 POP End: 04-15-2029 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
2019	Telecom software module implementation Contract Period: Option 2 POP Begin: 04-15-2028 POP End: 04-14-2029 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
2020	Tracking module implementation Contract Period: Option 2	1.00	EA		

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	POP Begin: 04-15-2028 POP End: 04-14-2029 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical				
2021	Scheduling software module implementation Contract Period: Option 2 POP Begin: 04-15-2028 POP End: 04-14-2029 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
2022	Tracking sensor cost Contract Period: Option 2 POP Begin: 04-15-2028 POP End: 04-14-2029 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
2023	Tracking gateway cost Contract Period: Option 2 POP Begin: 04-15-2028 POP End: 04-14-2029 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
2024	Cellular network fee Contract Period: Option 2 POP Begin: 04-15-2028 POP End: 04-14-2029 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
2025	Architectural field verification Contract Period: Option 2 POP Begin: 04-15-2028 POP End: 04-14-2029 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
3001	SaaS: Space Module (as-builts, CAI, plan room, employee) Contract Period: Option 3 POP Begin: 04-15-2029 POP End: 04-14-2030 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
3002	SaaS: Utilities Module (Fire and Life Safety, utilities, telecom) Contract Period: Option 3	1.00	EA		

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	POP Begin: 04-15-2029 POP End: 04-14-2030 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical				
3003	SaaS: BIM Contract Period: Option 3 POP Begin: 04-15-2029 POP End: 04-14-2030 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
3004	SaaS: Scheduling Module Contract Period: Option 3 POP Begin: 04-15-2029 POP End: 04-14-2030 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
3005	SaaS: Tracking Module Contract Period: Option 3 POP Begin: 04-15-2029 POP End: 04-14-2030 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
3006	Unlimited software: Space Module Contract Period: Option 3 POP Begin: 04-15-2029 POP End: 04-14-2030 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
3007	Unlimited software: Utilities module Contract Period: Option 3 POP Begin: 04-15-2029 POP End: 04-14-2030 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
3008	Unlimited software: Scheduling Module Contract Period: Option 3 POP Begin: 04-15-2029 POP End: 04-14-2030 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
3009	Unlimited software: Tracking Module Contract Period: Option 3	1.00	EA		

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	POP Begin: 04-15-2029 POP End: 04-14-2030 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical				
3010	Digitizing paper files Contract Period: Option 3 POP Begin: 04-15-2029 POP End: 04-14-2030 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
3011	Developing CAD drawings Contract Period: Option 3 POP Begin: 04-15-2029 POP End: 04-14-2030 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
3012	As-builts software module implementation Contract Period: Option 3 POP Begin: 04-15-2029 POP End: 04-14-2030 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
3013	Space management software module implementation Contract Period: Option 3 POP Begin: 04-15-2029 POP End: 04-14-2030 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
3014	Plan room software module implementation Contract Period: Option 3 POP Begin: 04-15-2029 POP End: 04-14-2030 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
3015	Employee software module implementation Contract Period: Option 3 POP Begin: 04-15-2029 POP End: 04-14-2030 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
3016	Fire and life safety software module implementation Contract Period: Option 3	1.00	EA		

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	POP Begin: 04-15-2029 POP End: 04-14-2030 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical				
3017	Developing BIM Contract Period: Option 3 POP Begin: 04-15-2029 POP End: 04-14-2030 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
3018	Utilities software module implementation Contract Period: Option 3 POP Begin: 04-15-2029 POP End: 04-30-2030 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
3019	Telecom software module implementation Contract Period: Option 3 POP Begin: 04-15-2029 POP End: 04-14-2030 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
3020	Tracking module implementation Contract Period: Option 3 POP Begin: 04-15-2029 POP End: 04-16-2030 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
3021	Scheduling software module implementation Contract Period: Option 3 POP Begin: 04-15-2029 POP End: 04-14-2030 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
3022	Tracking sensor cost Contract Period: Option 3 POP Begin: 04-15-2029 POP End: 04-14-2030 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
3023	Tracking gateway cost Contract Period: Option 3	1.00	EA		

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	POP Begin: 04-15-2029 POP End: 04-14-2030 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical				
3024	Cellular network fee Contract Period: Option 3 POP Begin: 04-15-2029 POP End: 04-14-2030 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
3025	Architectural field verification Contract Period: Option 3 POP Begin: 04-15-2029 POP End: 04-14-2030 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
4001	Tracking module implementation Contract Period: Option 4 POP Begin: 04-15-2030 POP End: 04-14-2031 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
4002	SaaS: Space Module (as-builts, CAI, plan room, employee) Contract Period: Option 4 POP Begin: 04-15-2030 POP End: 04-14-2031 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
4003	SaaS: Utilities Module (Fire and Life Safety, utilities, telecom) Contract Period: Option 4 POP Begin: 04-15-2030 POP End: 04-14-2031 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
4004	SaaS: BIM Contract Period: Option 4 POP Begin: 04-15-2030 POP End: 04-14-2031 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
4005	SaaS: Scheduling Module Contract Period: Option 4	1.00	EA		

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	POP Begin: 04-15-2030 POP End: 04-14-2031 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical				
4006	SaaS: Tracking Module Contract Period: Option 4 POP Begin: 04-15-2030 POP End: 04-14-2031 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
4007	Unlimited software: Space Module Contract Period: Option 4 POP Begin: 04-15-2030 POP End: 04-14-2031 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
4008	Unlimited software: Utilities module Contract Period: Option 4 POP Begin: 04-15-2030 POP End: 04-14-2031 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
4009	Unlimited software: Scheduling Module Contract Period: Option 4 POP Begin: 04-14-2030 POP End: 04-14-2031 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
4010	Unlimited software: Tracking Module Contract Period: Option 4 POP Begin: 04-15-2030 POP End: 04-14-2031 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
4011	Digitizing paper files Contract Period: Option 4 POP Begin: 04-15-2030 POP End: 04-14-2031 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
4012	Developing CAD drawings Contract Period: Option 4	1.00	EA		

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	POP Begin: 04-15-2030 POP End: 04-14-2031 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical				
4013	As-builts software module implementation Contract Period: Option 4 POP Begin: 04-15-2030 POP End: 04-14-2031 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
4014	Space management software module implementation Contract Period: Option 4 POP Begin: 04-15-2030 POP End: 04-14-2031 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
4015	Plan room software module implementation Contract Period: Option 4 POP Begin: 04-15-2030 POP End: 04-14-2031 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
4016	Employee software module implementation Contract Period: Option 4 POP Begin: 04-15-2030 POP End: 04-14-2031 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
4017	Fire and life safety software module implementation Contract Period: Option 4 POP Begin: 04-15-2030 POP End: 04-14-2031 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
4018	Developing BIM Contract Period: Option 4 POP Begin: 04-15-2030 POP End: 04-14-2031 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
4019	Utilities software module implementation Contract Period: Option 4	1.00	EA		

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	POP Begin: 04-15-2030 POP End: 04-14-2031 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical				
4020	Telecom software module implementation Contract Period: Option 4 POP Begin: 04-15-2030 POP End: 04-14-2031 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
4021	Scheduling software module implementation Contract Period: Option 4 POP Begin: 04-15-2030 POP End: 04-14-2031 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
4022	Tracking sensor cost Contract Period: Option 4 POP Begin: 04-15-2030 POP End: 04-14-2031 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
4023	Tracking gateway cost Contract Period: Option 4 POP Begin: 04-15-2030 POP End: 04-14-2031 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
4024	Cellular network fee Contract Period: Option 4 POP Begin: 04-15-2030 POP End: 04-14-2031 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
4025	Architectural field verification Contract Period: Option 4 POP Begin: 04-15-2030 POP End: 04-14-2031 PRINCIPAL NAICS CODE: 541511 - Custom Computer Programming Services PRODUCT/SERVICE CODE: R425 - Support - Professional: Engineering/Technical	1.00	EA		
				GRAND TOTAL	

Electronic Drawing Development and Management System
Veterans Integrated Service Network - 5

I. Background

VISN 5 has a need for continual as-built drawing update service through a Blanket Purchase Agreement (BPA). VISN 5 is a fully integrated network of eight (8) VA medical campuses and multiple VA Community Clinics.

II. Requiring Facilities

VA Medical Center (VAMC)	Address	Station Number
Baltimore VA Medical Center	10 North Greene Street Baltimore, MD 21201	512
Loch Raven VA Medical Center	3901 The Alameda Baltimore, MD 21218	512GD
Perry Point VA Medical Center	361 Boiler House Road Perry Point, MD 21902	512A5
Beckley VA Medical Center	200 Veterans Avenue Beckley, WV 25801	517
Louis A. Johnson VA Medical Center	1 Medical Drive Clarksburg, WV 26301	540
Hershel "Woody" Williams VA Medical Center	1540 Spring Valley Drive Huntington, WV 25704	581
Martinsburg VA Medical Center	510 Butler Avenue Martinsburg, WV 25405	613

Washington VA Medical Center	50 Irving Street, Northwest 688 Washington, DC 20422	
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III. Scope of Work

VISN 5 has a requirement for a web based Electronic Drawings Management System with graphical tools to store and share engineering drawings, assign space, and report usage among organizational groups. It must be a multi-user, multi-tasking system supporting multiple users in organization, spanning many buildings and sites within its eight (8) VA Medical Centers (VAMC). The Contractor must provide all supervision, coordination, staffing, software, licenses, website access, training, backup and other related services as necessary to provide and maintain VISN 5 building records and files and make them readily accessible to VA staff through the Contractor's website. The Contractor must perform all these services as defined by this SOW and the services must be provided to support all VISN 5 VA campuses and associated Community Clinics.

A. Build and Maintain an Electronic Library of Current Drawings

The Contractor must meet with VA Contracting Officer's Representative (COR) to develop a file naming system and capture existing paper and electronic drawings so that they can be easily organized, retrieved, and shared among all internal and external stakeholders. Title Block information must be captured and linked to each drawing to facilitate ease of use. Scanning of hardcopy paper drawings will be required. All drawings must be scanned as a PDF output format.

After scanning the Contractor must collect metadata that uniquely defines each drawing. Typical information includes:

1. Building
2. Floor
3. Discipline
4. Project Year
5. Project Number
6. Drawings Number
7. Sheet Number

The Contractor must upload existing electronic drawings and collect metadata from these drawings. Once the upload is completed, the Facility COR will review to verify the accuracy and request any necessary changes. See Attachment A, *Facility Buildings and Square Footages*, for facility specific square footages.

B. Build a Capital Asset Inventory (CAI) Database and Reporting System

The medical centers require a space management system that can track the assignment of all spaces and can generate reports including Capital Asset Inventory (CAI) reports. The medical centers must provide to the Contractor what available information is on hand. However, if necessary, the Contractor must conduct a walkthrough through of the buildings to capture the required information for every room. In planning for this survey, the Contractor must be aware that some areas, such as pharmacies, ORs, and certain patient areas, may not be readily available to be surveyed and they must plan in consultation with the occupying service line and VA Contracting Officer's Representative (COR) and only when it is convenient for the service line.

C. Host Database and Provide Login Access

The associated drawings and data must be hosted on a secured server operated by the Contractor. The server and web portal must have all Federal and VA required security and encryption measures implemented such as but not limited to FedRAMP (refer to Section IX for additional information). The Contractor must make it possible for VA users to access this application through the internet. The database must be developed within six months of contract award. The Contractor must work with the VA to develop the layout and appearance of the web portal. The Contractor must maintain the system without interruption on a 24/7 basis and provide unlimited technical support. Technical support may be limited to normal operating hours and must include telephone and email mode of communication.

The system will consist of numerous modules each with a specific purpose. Each facility's needs must vary and will be implemented through an individual

task order (refer to section VII for additional information). The following modules must be provided under the system:

1. **Space Management Module:** This database must ensure that all space within the Medical Center is accounted for, based on specific categories identified by the users and must include dynamic expansion of space data to include new data fields and space categories. The module must allow users to easily edit or reconfigure space data without database expertise. The module must be combined with as-built module to provide a holistic view of the building space including enabling users to visualize, analyze, search, and aggregate the data. Capability to generate and export reports to a variety of external file formats. The implementation of this module must be based on cost per square foot. The space database must, at a *minimum*, contain the following data:
 - a) Room numbers
 - b) Space functions
 - c) Service line assignments
 - d) CAI space driver assignments
 - e) Net and gross square footages
2. **As-Builts Module:** This module must be an online secure repository of electronic drawings, organized by site, building, floor, and discipline. The database must allow for a graphic engine and associated tools to enable viewing of drawings in AutoCAD and Revit Model formats without the use of AutoCAD or Revit Software. The users must be able to comment and markup the as-built drawings and save them to the repository. Also, the module must enable the users to view revision history, keeping track of all the changes that occur, and maintain an archive of all past versions. Options to save/export/print the drawings to different formats like .dwf, PDF, .bmp, jpeg, etc. and to share the exported files to various stakeholders without the need of AutoCAD must be included. The Contractor must comply with VA AutoCAD and BIM standards, found on VA's Technical Information Library, <https://vatilms.va.gov/vatilms/reports/PG-18-13>. The drawings must be organized in the form of one drawing per contiguous floor per building wherever it is possible. The implementation of this module must be based on cost per square foot.

3. **Drawing Development:** The BPA must include a service to develop AutoCAD drawings in the following disciplines: Architectural, Electrical, Mechanical, Plumbing, Medical Gas, Fire and Life Systems, and Low Voltage. Drawing development must be based on a cost per square foot.
4. **Building Information Modeling:** The BPA must include a service to create a 3D representation of the buildings and/or campus models per VA's BIM Standards found on Technical Information Library. BIM development must be based on cost per square foot.
5. **Digitization Services:** The BPA must include a service to convert paper, PDF, or other drawing formats into AutoCAD format. Implementation of this service must be based on cost per individual sheet.
6. **Fire Life Safety Module:** This module must include an integration and maintenance of the Fire Life Safety system features. Refer to Section E for additional Life Safety field verification requirements. The implementation of this module must be based on cost per square foot. At minimum the following features of Fire Life Safety must be incorporated:
 - a) Sprinklers/stand pipe/fire department connection (FDC)
 - b) Sprinkler data such as type, manufacture, zone and installation date (NEW information provided from 3rd party survey)
 - c) Fire/smoke damper (to include ID name and other data pertaining to inspections)
 - d) Fire alarm panel architecture (one line drawing showing panel locations and areas served)
 - e) Fire barrier locations and hazardous storage locations
 - f) Fire smoke doors (to include ID name and other data pertaining to inspections).
 - g) Statement of conditions drawings showing type of space as defined by NFPA provided by others (as-built plans)
 - h) Emergency management quick reference drawings
 - (1) Single page diagram of site of fire fighter features (showing doors, hydrants, FDC, fire pumps, roadways, etc.)
 - (2) Single page diagram of site showing door with naming/symbol convention

- (3) Single page drawing for emergency response showing the facility in an isometric view allowing to view fire/rescue features to include corridors, elevators, stairs, patient floors and hazardous storage locations.
7. **Employee Module:** Module to plan, manage, and track employee facility use information to enable visualization of employee location and space utilization. The implementation of this module must be based on cost per square foot.
8. **Occupancy Tracking Module:** The BPA must include a service to give users to see available spaces on floor plans or room lists in real time. Immediate access to live occupancy data from sensor (Contractor furnished and installed) in spaces. Ability to export occupancy lists into Excel. The implementation of this module must be based on each individual requirement (i.e., per job).

D. Update and Maintain the Database

Ongoing additions or renovations require changes to drawings to maintain the integrity of the drawing database. Each facility will require that these changes be incorporated in the existing drawings so that the drawings in the system will be current. The frequency and extent of such changes will depend on completion of projects and may be unpredictable. Periodically, facilities will send drawings and other documentation to the Contractor that indicate the alterations in certain areas. The Contractor must, upon receipt of such documents, consult with facility staff and clarify the changes as necessary. The Contractor must incorporate the changes in the drawings and update the respected modules.

A facility may decide to add additional data to the existing CAD drawings. Such additional data may include life safety components, electrical panels, piping, and shut-off valves. The facility may decide to add additional buildings or suites to the system. The size and locations of these are not known now. Individual task orders (reference section VII) must include making field measurements and sketching out the drawings, drawing them in CAD or Revit, and loading them into the drawing repository for use.

E. General Field Verification Surveys

The medical center cannot guarantee the accuracy of existing drawings and therefore the Contractor may need to conduct an onsite verification field survey to capture current conditions of as-builts.

1. Site visits are to be used for instances where an as-built drawing is not matching the previously developed data, the new designs, or current conditions, or clear up a currently unknown issue on site. Site visits will be coordinated through separate task orders.
2. The Contractor must send a team to survey and field verify the accuracy of the architectural drawings in a manner that verifies that general conditions noted on the drawings appear to be accurate and complete.
3. The surveys may also include verification of the accuracy of HVAC/mechanical, plumbing, medical gas, electrical, and telecom (MEP) systems as necessary through separate task orders.
4. Life Safety survey. This portion consists of revising existing Life Safety drawings, which must comply with the Joint Commission (TJC) requirements and the latest edition of NFPA 101, *Life Safety Code*. The Contractor must inspect the buildings (construction type) and related systems (fire sprinkler, fire detection, smoke, etc.) and confirm the accuracy of the existing Life Safety drawings and update them as necessary. Base drawings will be provided by the facility. If the existing drawings are not in compliance with NFPA 101 and TJC requirements, the Contractor must update them accordingly.
 - a) Each Life Safety task order must require a licensed Fire Protection Engineer (FPE). The FPE retained to provide these services must be licensed to practice in the States where the VAMCs are located and must specifically demonstrate a minimum of three years of verifiable experience within healthcare occupancy and development of Statement of Conditions per TJC requirements. This experience must be submitted to the Contracting Officer for review and approval prior to providing Life Safety drawing support. The submission must include a fully complete Standard Form (SF) 330, Architect/Engineer

Qualifications. For additional FPE qualifications, refer to VA Technical Information Library, <https://www.cfm.va.gov/til/>.

5. In planning for the survey, the Contractor must be aware that some areas may not be readily available to be surveyed and must plan in consultation with the occupying service line and VA Contracting Officer's Representative (COR) and conduct the surveys when it is convenient for the service line.
6. Some buildings have interstitial spaces, and the above list may not include such spaces. The contractor must include those spaces as well in the system to be developed under individual task orders. However, the interstitial spaces must be specified in the system in such a way that they can be separately treated for analysis and reporting.
7. The Contractor must update all CAD drawings for any changes needed, based off the surveys. In updating the CAD drawings, the Contractor must comply with VA CAD standards available on VA Technical Information Library, <https://www.cfm.va.gov/til/>.

F. Provide Training for Use of The System

Provide one (1) annual on-site training session per VISN 5 facility. This training must be a hands-on/on-site session. The session must cover features required by end users and administrators. Training for end users will demonstrate the use of the online system and focus on the system modules in use by the respective VA facility. Specialized training for administrative users, that are designated by respective VA facility, must be more in-depth to cover any additional functions used by these users.

In addition, the Contractor will provide on-line training sessions as needed or when VISN 5 facilities require such training when specific situations warrant it. Examples are when new employees join a VISN 5 facility or when the Contractor significantly modifies the system. This on-line training will be done at no additional cost.

G. Software User Management

Provide the COR with administration rights for local facility user management. At the end of each contract year, the vendor must provide the VISN COR a system use report broken down by each facility and each user.

IV. Period of Performance

VISN 5 requests a 5-Year Blanket Purchase Agreement (BPA) beginning immediately upon award.

V. Work Requirements

- A. The VA will not provide servers, equipment, or other items needed to perform the required service. No contractor software to be installed on VA computers.
- B. Work done on-site at the ordering VA must be coordinated with the Contracting Officer Representative (COR) appointed by the CO. Generally, work will be done during normal business hours (M-F 8-4:30), excluding federal holidays. If work needs to be performed after hours for convenience to the government, all hours will be coordinated with the COR. The following federal holidays are observed:

New Year's Day	Labor Day
Martin Luther King Jr. Day	Columbus Day
Washington's Birthday	Veteran's Day
Memorial Day	Thanksgiving Day
Juneteenth National Independence Day	Christmas Day
Independence Day	

- C. The data files will remain Government property while Contractor is in possession of the files. When the contract is rendered complete, all information will be returned to the respected VA Facilities, to include all updated drawings and module reports.

VI. Government Roles and Responsibilities

A. Roles.

The following personnel are the authorized representatives to oversee and coordinate with the Contractor for this contract:

Name	Role	E-mail	Telephone
TBD	Contracting Officer	TBD	TBD
TBD	Contract Specialist	TBD	TBD
Yan Protsyuk	VISN COR	Yan.Protsyuk@va.gov	410-642-2411 X 22952
Dalton Coker	Facility COR – 512	Dalton.Coker@va.gov	TBD
Dalton Coker	Facility COR – 512GD	Dalton.Coker@va.gov	TBD
Justin Raducha	Facility COR – 512A5	Justin.Raducha@va.gov	410-642-2411 X 25214
Sarah Adkins	Facility COR – 517	Sarah.Adkins1@va.gov	304-255-2121 X 4151
Donald Bramer	Facility COR – 540	Donald.Bramer@va.gov	304-623-3461 X 3161
David Webb	Facility COR – 581	David.Webb5@va.gov	304-429-6755 X 2377
Gary Magowan	Facility COR – 613	Gary.Magowan@va.gov	TBD
Gregory Lucas	Facility COR – 688	Gregory.Lucas1@va.gov	202-745-8000 X 57437

B. Responsibilities.

1. Contracting Officer (CO) / Contract Specialist (CS) - The CO and CS will ensure performance of all necessary actions for effective contracting, ensure compliance with the contract terms, and will safeguard the interests of the United States in the contractual relationship. The CO will also assure the Contractor receives impartial, fair, and equitable treatment under this contract. The CO is ultimately responsible for the final determination of the adequacy of the Contractor's performance. Refer to section VII for additional information regarding individual Task Orders.
2. VISN COR - The VISN wide COR has authority to provide direction to the Contractor if within scope of the contract, that does not constitute and change to the contract, and has no funding implications. This

individual does not have authority to change the terms and conditions of the contract.

3. Facility COR - The Facility COR is responsible for technical administration of the contract at the facility level. The Facility COR is not empowered to make any contractual commitments or to authorize any contractual changes on the Government's behalf. The Contractor must refer any changes they deem may affect contract price, terms, or conditions to the CO for action. The Facility COR will be assigned via individual Task Orders.

VII. Task Order – Ordering Procedures

Once a need is identified, VISN or Facility COR must develop a specific set of requirements and forward them to the Contracting Officer. The Contracting Officer must request a quote from the Contractor based on COR requirements and established BPA cost schedules. The Contractor may submit a quote less than the scheduled prices, or offer discount pricing, but the Contractor must not quote prices that exceed the price/cost schedule applicable to pricing period dates that apply to the task order period of performance. Task orders must be completed only by the Warranted Contracting Officer; neither the VISN nor the Facility COR have the authority to commit the government to any services under this contract without an explicit task order that is signed by the warranted Contracting Officer.

VIII. Quality Assurance Plan

Performance will be measured by vendor timeliness in responding to service requests, and the quality of the maintained drawings and database. The facilities drawings created by the vendor must be compliant with VA standards and be compatible with generally accepted industry practices. When the vendor creates new facility drawings the vendor must submit a preliminary set of drawings for review by the medical center staff. The vendor must hold in person or on-line discussions to discuss the review findings and make agreed-upon modifications.

The facilities related data such as occupancy by service lines collected or validated by the vendor must be reviewed by medical center staff and the vendor must make all agreed-upon changes. When the medical centers send out existing drawings for updating to the vendor, vendor must acknowledge the receipt within seven days of receiving them. Within the next seven days the vendor must hold discussions with the VA staff - if the vendor has

questions or requires clarifications. Once the clarifications are done, the vendor must update the drawings and load them on to the platform within a further period of 15 days. The quality of the images maintained in the vendor's database must be legible and high quality. The vendor must make all appointments scheduled with the COR on time and without delay.

IX. Information Security

- A. The information system solution provided by the Contractor must comply with the Federal Information Security Management Act (FISMA).
- B. The Contractor must comply with Federal Risk and Authorization Management Program (FedRAMP) requirements as mandated by Federal laws and policies, including making available any documentation, physical access, and logical access needed to support this requirement.
- C. The Contractor must have an active Program Management Office FedRAMP Department of Veterans Affairs Authority to Operate (ATO) or obtain one prior to contract award for cloud-based services required in this contract.
- D. The Contractor must complete a FedRAMP System Security Plan (SSP) and supporting documentation prior to contract award.
- E. The Contractor must complete a Third Party Assessment Organization (3PAO) Security Assessment Plan (SAP) prior to contract award.
- F. The Contractor must complete a 3PAO Security Assessment Report (SAR) prior to contract award.
- G. The Contractor must afford VA access to the Contractor's and Cloud Service Provider's (CSP) facilities, installations, technical capabilities, operations, documentation, records, and databases.
- H. If new or unanticipated threats or hazards are discovered by either VA or the Contractor, or if existing safeguards have ceased to function, the discoverer must immediately bring the situation to the attention of the other party in accordance with the security addendum B.
- I. The Contractor must not release any data without the consent of VA in writing. All requests for release must be submitted in writing to the Contracting Officer's Representative (COR)/Contracting Officer (CO).
- J. In order for live VA data to be used in this system, a FedRAMP Authorization and Agency ATO will be required.
- K. Deliverables:
 - 1. FedRAMP System Security Plan (SSP) and supporting documentation
 - 2. VA Implementation Diagram: This is a VA specific architecture diagram demonstrating the proposed implementation of this system at VA (VAID)
 - 3. 3PAO Security Assessment Plan (SAP)
 - 4. 3PAO Security Assessment Report (SAR)

VA Information Security policies apply.

This contract will not involve connection of one or more contractor-owned IT devices (such as laptop computer or remote connection from a contractor system) to a VA internal trusted (i.e., non-public) network; therefore, C&A requirements do not apply, and a Security Accreditation Package is not required.

The Contractor, their personnel, and their subcontractors must be subject to the Federal laws,

regulations, standards, and VA Directives and Handbooks regarding information and information system security as delineated in this contract.

The assigned COR will ensure that VA sensitive information is protected via physical supervision of contractor personnel whenever access is needed to equipment or files that contain VA sensitive information.

Attachment A Facility Buildings and Square Footages

Baltimore VAMC (512)		
Building #	Asset Name	Total GSF
1	Medical Center	1,044,909
512GG	Fort Meade Clinic	13,228
512GA	Cambridge Clinic	11,945
512GC	Glen Burnie Clinic	9,500
512GE	Pocomoke Clinic	6,402
512GH	Baltimore Annex	83,200
512GJ	Eastern Baltimore County Clinic	13,940
Total		1,183,124

Loch Raven VAMC (512GD)		
Building #	Asset Name	Total GSF
1LR	Nursing Home	128,759
2	HBPC Administration	2,724
4	Administration	15,813
5	Loch Raven Clinic	28,712
6	Imaging	2,931
7	Research Building	17,491
14	Prosthetics	2,284
Total		198,714

Perry Point VAMC (512A5)		
Building #	Asset Name	Total GSF
4	RESEARCH / Cooperative Studies	15,062
8	M&O Shop Storage / Grounds Shop / Public Health	49,144
11	EMS WAREHOUSE	75,095
15	VACANT - Formerly NCCC	16,653
20	Raw Water Pumping Station	6,200
24	Oil House	662
26	FIRE HOUSE / TRANSPORTATION	12,104
32	Valve House	506
59	POLICE STATION	2,537
80	MENTAL HEALTH CLINIC	40,818
82	ENGINEERING / CHEP / VISN	26,508
86	Garage - Mansion House	552
96	Guard House - Truck Entrance	176
97	VACANT - Guard House	497
101	Contracting / Safety / FES Admin	11,178
103	Water Treatment Plant	15,929
311	Sewage Pump Station	3,274
315	Boiler Plant	7,679
321	Chiller Plant	18,528
324	GENERATOR BLDG (3H/4H/5H/27H)	895
325	GENERATOR BLDG (1H/2H/17H backup)	895
326	GENERATOR BLDG (13H/14H)	895
327	GENERATOR BLDG (24H/25H)	1,001
328	GENERATOR BLDG (17H)	703
329	GENERATOR BLDG (22H)	895
333	GENERATOR BLDG (20H)	450
340	VACANT - Sports Hut	1,103
344	GENERATOR BLDG (9H/314)	895
360	SCMS Warehouse / Medical Media	60,785
361	CLINICAL BUILDING	61,534
364	PRRTP / Vocational Rehab	100,330
365	GENERATOR BLDG (364)	400
366	Day Treatment	5,523
367	GIF Warehouse/Pole Barn	7,200
368	CORRIDOR SYSTEM	31,952
501	HISTORIC MANSION	7,388
1118	CWT / TRANSITIONAL HOUSING	1,363
1119	CWT / TRANSITIONAL HOUSING	1,363
1128	STUDENT HOUSING	1,406

1129	STUDENT HOUSING	1,406
1159	CWT / TRANSITIONAL HOUSING	1,363
1160	CWT / TRANSITIONAL HOUSING	1,363
1162	CWT / TRANSITIONAL HOUSING	1,363
101B,C	Modular buildings	5,186
11H	HRMS	13,015
13H	IRM, EMS, Personnel Security	55,070
14H	NHCU, CLC, Kinesiotherapy	46,985
15H	REHAB, CITC, DAV, Voluntary Service	14,268
17H	DIETETICS / CANTEEN / BARBER	57,947
18H	ENGINEERING MAINTENANCE SHOPS	9,359
19H	MEDICAL WARDS, EEO, MAILROOM	63,208
1H	VACANT - DOMICILIARY	13,341
20H	IRMS	8,311
22H	SARRTP	43,277
23H	Geropsych Nursing Units / Dental / Optometry / SPS	67,333
24H	VACANT - MENTAL HEALTH NURSING UNIT	66,829
25H	VACANT - MENTAL HEALTH NURSING UNIT	65,868
27H	BIOMED SHOP	2,712
504	HISTORIC GRIST MILL	4,213
2H	VACANT - DOMICILIARY (closed for remediation)	12,571
314A	THEATER	10,691
314B	RECREATION	23,699
314C	CHAPEL	6,070
362T	RESEARCH (Modular Building)	1,821
3H	VACANT - ADMINISTRATION (closed for construction)	12,508
4H	Finance / Accounting	12,946
5H	Directors Suite / Employee Education	12,563
6H	Escort Service / Prosthetics	2,554
CC	Connecting Corridors	42,019
HCS	Holly Center Salisbury	4,160
T5	REMRO Motor Pool Garage	2,872
T508	Equipment Storage Building	2,880
Total		1,279,849

Beckley VAMC (517)		
Building #	Asset Name	Total GSF
1	VAMC - Main Hospital	260,559
10	Water Pump House	652
12	Gas Meter House	104
14	Mental Health	3,850
15	Mental Health	3,850
16	Chillers - A/C Plant	1,337
17	Metal Storage Building	1,516
2	Engineering Services - Admin	2,929
22	Electrical Switchgear	805
28	Equipment Storage Building - Metal	400
29	Police Training	2,400
30	Decon Storage	800
31	Welding Shop	600
32	Equipment Storage	1,200
35	Patient Care Expansion/Adult Day Care	15,662
36	Pandemic Storage 4 bay	1,240
3A	Education/RTO VISN	1,520
3B	Quality Management - Admin	1,452
4A	Safety/HR-PIV	1,601
4B	Human Resources - Admin	1,452
5A	CIC	2,511
5B	CIC	2,210
6	Education & log. cont. storage	7,170
7	FMS Shops & Boiler Plant	16,301
8	Mental Health	4,700
8A	Mental Health	10,920
GVCBOC 1	Greenbrier County VA Clinic	4,676
MCBOC 1	Mercer County VA Clinic	6,923
Total		359,340

Clarksburg VAMC (540)		
Building #	Asset Name	Total GSF
1	Main Hospital Building	202,353
17	Generator Building	1,650
18	Generator Building	200
19	Switchgear Building	1,900
1CA	Clinical Addition	154,506
22	Villa	7,805

5	Behavioral Health	9,384
540GA	Tucker County CBOC	3,375
540GB	Wood County CBOC	8,480
540GC	Braxton County CBOC	2,440
540GD	Monongalia County CBOC	7,000
540GE	Highland Warehouse	9,990
6	Human Resources Building	4,937
7	Engineering & Laundry	29,443
9	Gas Meter House	150
Community Building	MHRRTP	11,585
Lease	Rosebud Adm Leased Space	9,950
Total		465,148

Huntington VAMC (581)		
Building #	Asset Name	Total GSF
1	Outpatient/Admin	77,932
12	Administrative	29,753
15	Storage	3,600
17	Engineering Shop	500
19	Engineering Garage Grounds Maint	3,590
1S	WARDS, CLINICS	247,005
1W	CLINICS, HOPTel	39,920
2	Kitchen/Laundry/M&O/Admin	38,035
20	Administrative Function Various	18,204
21	Fisher House	13,274
23R	Research VA	35,154
26	Electrical Switchgear	1,301
28	ALS/Eng Warehouse	8,330
28A	Pharmacy Cache	1,000
29	Engineering GEMS Storage	900
3	Boiler Plant	6,257
34	Engineering Maintenance Shop	4,480
4	Recreation Hall/Canteen	20,883
5	Mental Health Outpatient	18,536
52	Emergency Generator	1,950
581GA	Prestonsburg Outpatient Clinic	7,722
581GB	Charleston CBOC Lease	18,300
581GG	Outpatient Clinic	2,250
581GH	LENORE WV ROHC	2,440
581QA	Huntington Homeless Center Social Work	9,985
6	Mental Health PRRC	10,272

7	Women's Health Clinic	7,085
8	Engineering & Environmental Care	7,576
9	Residential Rehab & Treatment RRTP	11,104
TR1	Learning Resources	2,200
TR2	Business Office	2,000
TR3	Fiscal	1,300
TR4	Fiscal	1,300
TR5	Logistics	2,000
Total		656,138

Martinsburg VAMC (613)		
Building #	Asset Name	Total GSF
117	Chapel	3,720
19	Guard Shack	434
203	CITC/HR	9,840
203C	DOM STORAGE	2,238
205	Behavioral Health	8,566
207	Under Construction-A Side B-Side Education	9,592
207C	Electrical Room	154
209	Medical Residential Quarters	8,753
21	PRRP Lodging, Baker House	3,861
211	Behavioral Health/Information Management	9,370
213	Outpatient Mental Health	36,938
217	Rec Therapy, HR, Fiscal	25,803
219	EMS	405
221	EMS	511
223	Vending Room	490
224	Mechanical Room	333
25	Baker House Garage	556
302	Electronics Engineering/Transportation	4,020
304	Motor Pool Garage	4,768
305	Fiscal	5,055
306	OI&T, Mailroom and Contracting	13,499
307	Care in the Community (CITC)	5,055
308	Bowling Alley and Engineering	13,336
309	OEM/Under Construction	5,055
310	Storage	13,556
311	Home telehealth/Education	5,016
313	Volunteer Service	5,055
313T	Swing Space	2,160
314	Engineering	18,255
316	Water Softener	1,167

317	Post Theatre	8,130
318	Fire Station	10,362
319	EMS	536
320	Boiler Plant	10,938
321	Care in the Community (CITC)	648
328	Engineering Field Office	1,800
330	Engineering Shops	7,181
331	EMSHG Utility Building	360
334	Carbon Filtration Enclosure	1,575
337	Pump House Well 2	219
339	Pump House Well 1	220
341	Pump House Well 3	128
343	Pump House Well 4	129
344	Engineering Storage	1,808
347	Vehicle Wash Bay	296
354	Motor Pool Storage	167
358	Motor Pool Storage	237
376	Green House	150
401	Recreation/Medical Service Admin	12,741
403	Administrative Offices	4,450
405	PAO / Hoptel	5,055
407	Res. Qtrs / VACO Office	5,049
409	Res. Qtrs / VACO offices	5,055
411	Safety/Gems	5,084
413	HBPC/Community Health	5,055
415	Rural Health/West Mar House	5,055
417	Pool Bath House	2,194
419	Pool	1,180
421	Pool Pump House & Filtration Plant	1,356
500	Main Hospital Building	535,571
501	NHCU	68,688
502	Domiciliary	122,332
503	Chiller Plant	5,786
504	Water Plant	6,026
508	Laundry	15,270
509	Warehouse	6,000
510	Backflow Preventer Enclosure	122
512	Heroes Health & Wellness Center	8,029
513	CLC NURSING HOME	17,028
516	Community Living Center	17,669
518	DENTAL	19,085
519	WAREHOUSE	29,937
613GA	Cumberland CBOC	10,316
613GB	Hagerstown CBOC	8,610

613GC	Stephens City CBOC	9,507
613GE	Petersburg CBOC	3,491
613GG	Ft. Detrick CBOC	15,327
613GH	Harrisonburg CBOC	12,215
613MCCF	MCCF Leased Space	9,466
C200	Connecting Corridor	6,564
C300	Connecting Corridor	1,454
C300S	Connecting Corridor	3,276
C4	Connecting Corridors	4,942
C400	Connecting Corridor	2,613
C4S	Connecting Corridor	5,876
Total		1,259,919

Washington, DC VAMC (688)		
Building #	Asset Name	Total GSF
1	Main Hospital	756,437
14	Research Addition	18,977
16	Fisher House	14,625
17	Two story Modular Admin Building	15,671
4	Research	38,355
5	Chiller Plant	1,444
6	Nursing Home Care	182,425
688	Charlotte Hall (New)	17,741
CCC	Child Care Center	9,235
CRRC	DC Community Resource and Referral Center	12,906
DTC	SE Washington CBOC	1,280
Ft. Belvoir	Ft. Belvoir CBOC	9,132
MC1	Montgomery County CBOC	13,146
PG1	Southern Prince George's County CBOC	8,500
PG2	Landover Business Office	4,640
Total		1,104,514

VISN 5 has a need for continual as-built drawing update service through a Blanket Purchase Agreement (BPA). VISN 5 is a fully integrated network of eight (8) VA medical campuses and multiple VA Community Clinics.

SECTION C - CONTRACT CLAUSES

C.1 52.212-4 CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2023)

(a) *Inspection/Acceptance.* The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post-acceptance rights—

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(b) *Assignment.* The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(c) *Changes.* Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(d) *Disputes.* This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause at Federal Acquisition Regulation (FAR) 52.233-1, Disputes, which is incorporated herein by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(e) *Definitions.* The clause at FAR 52.202-1, Definitions, is incorporated herein by reference.

(f) *Excusable delays.* The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence such as, acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. The Contractor shall notify the Contracting Officer in writing as soon as it is reasonably possible after the commencement of any excusable delay, setting forth the full particulars in connection therewith, shall remedy such occurrence with all reasonable dispatch, and shall promptly give written notice to the Contracting Officer of the cessation of such occurrence.

(g) Invoice.

(1) The Contractor shall submit an original invoice and three copies (or electronic invoice, if authorized) to the address designated in the contract to receive invoices. An invoice must include—

(i) Name and address of the Contractor;

(ii) Invoice date and number;

(iii) Contract number, line item number and, if applicable, the order number;

(iv) Description, quantity, unit of measure, unit price and extended price of the items delivered;

(v) Shipping number and date of shipment, including the bill of lading number and weight of shipment if shipped on Government bill of lading;

(vi) Terms of any discount for prompt payment offered;

(vii) Name and address of official to whom payment is to be sent;

(viii) Name, title, and phone number of person to notify in event of defective invoice; and

(ix) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.

(x) Electronic funds transfer (EFT) banking information.

(A) The Contractor shall include EFT banking information on the invoice only if required elsewhere in this contract.

(B) If EFT banking information is not required to be on the invoice, in order for the invoice to be a proper invoice, the Contractor shall have submitted correct EFT banking information in accordance with the applicable solicitation provision, contract clause (e.g., 52.232-33, Payment by Electronic Funds Transfer—System for Award Management, or 52.232-34, Payment by Electronic Funds Transfer—Other Than System for Award Management), or applicable agency procedures.

(C) EFT banking information is not required if the Government waived the requirement to pay by EFT.

(2) Invoices will be handled in accordance with the Prompt Payment Act (31 U.S.C. 3903) and Office of Management and Budget (OMB) prompt payment regulations at 5 CFR part 1315.

(h) *Patent indemnity*. The Contractor shall indemnify the Government and its officers, employees and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) Payment.—

(1) *Items accepted.* Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) *Prompt payment.* The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(3) *Electronic Funds Transfer (EFT).* If the Government makes payment by EFT, see 52.212-5(b) for the appropriate EFT clause.

(4) *Discount.* In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date which appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(5) *Overpayments.* If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall—

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the—

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(6) *Interest.*

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final decisions.* The Contracting Officer will issue a final decision as required by 33.211 if—

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see 32.607-2).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on—

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures prescribed in FAR 32.608-2 in effect on the date of this contract.

(j) *Risk of loss.* Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon:

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) *Taxes.* The contract price includes all applicable Federal, State, and local taxes and duties.

(l) *Termination for the Government's convenience.* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work hereunder and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to

comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) *Termination for cause.* The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) *Title.* Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) *Warranty.* The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in this contract.

(p) *Limitation of liability.* Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) *Other compliances.* The Contractor shall comply with all applicable Federal, State and local laws, executive orders, rules and regulations applicable to its performance under this contract.

(r) *Compliance with laws unique to Government contracts.* The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 18 U.S.C. 431 relating to officials not to benefit; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Fly American; and 41 U.S.C. chapter 21 relating to procurement integrity.

(s) *Order of precedence.* Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

(1) The schedule of supplies/services.

(2) The Assignments, Disputes, Payments, Invoice, Other Compliances, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;

(3) The clause at 52.212-5.

(4) Addenda to this solicitation or contract, including any license agreements for computer software.

(5) Solicitation provisions if this is a solicitation.

(6) Other paragraphs of this clause.

(7) The Standard Form 1449.

(8) Other documents, exhibits, and attachments

(9) The specification.

(t) [Reserved]

(u) *Unauthorized Obligations.*

(1) Except as stated in paragraph (u)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (u)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(v) *Incorporation by reference.* The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of Clause)

ADDENDUM to FAR 52.212-4 CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

Clauses that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following clauses are incorporated into 52.212-4 as an addendum to this contract:

C.2 52.216-18 ORDERING (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from 4/15/2026 through 4/14/2031.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when—

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either—

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of Clause)

C.3 52.216-19 ORDER LIMITATIONS (OCT 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than \$500.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor—

(1) Any order for a single item in excess of \$500.00;

(2) Any order for a combination of items in excess of \$500.00; or

(3) A series of orders from the same ordering office within 15 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 15 days after issuance, with written notice stating the

Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of Clause)

C.4 52.216-22 INDEFINITE QUANTITY (NOV 2025) (DEVIATION)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after 10 days.

(End of Clause)

C.5 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days.

(End of Clause)

C.6 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed five (5) years.

(End of Clause)

C.7 SUPPLEMENTAL INSURANCE REQUIREMENTS

In accordance with FAR 28.307-2 and FAR 52.228-5, the following minimum coverage shall apply to this contract:

(a) Workers' compensation and employers liability: Contractors are required to comply with applicable Federal and State workers' compensation and occupational disease statutes. If occupational diseases are not compensable under those statutes, they shall be covered under the employer's liability section of the insurance policy, except when contract operations are so commingled with a Contractor's commercial operations that it would not be practical to require this coverage. Employer's liability coverage of at least \$100,000 is required, except in States with exclusive or monopolistic funds that do not permit workers' compensation to be written by private carriers.

(b) General Liability: \$500,000.00 per occurrences.

(c) Automobile liability: \$200,000.00 per person; \$500,000.00 per occurrence and \$20,000.00 property damage.

(d) The successful bidder must present to the Contracting Officer, prior to award, evidence of general liability insurance without any exclusionary clauses for asbestos that would void the general liability coverage.

(End of Clause)

C.8 52.240-91 SECURITY PROHIBITIONS AND EXCLUSIONS (NOV 2025) (DEVIATION)

(a) *Definitions.* As used in this clause—

American Security Drone Act-covered foreign entity means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at <https://www.sam.gov> (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Covered article, as defined in 41 U.S.C. 4713(k), means:

- (1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;
- (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);
- (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or
- (4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means—

- (1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);
- (2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);
- (3) Telecommunications or video surveillance services provided by such entities or using such equipment; or
- (4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means—

- (1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;
- (2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—
 - (i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or
 - (ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

(1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Information technology, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be

controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—

- (1) The Office of the Director of National Intelligence;
- (2) The Central Intelligence Agency;
- (3) The National Security Agency;
- (4) The Defense Intelligence Agency;
- (5) The National Geospatial-Intelligence Agency;
- (6) The National Reconnaissance Office;
- (7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;
- (8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;
- (9) The Bureau of Intelligence and Research of the Department of State;
- (10) The Office of Intelligence and Analysis of the Department of the Treasury;
- (11) The Office of Intelligence and Analysis of the Department of Homeland Security; or
- (12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

Interconnection arrangement means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Kaspersky Lab-covered article means any hardware, software, or service that—

- (1) Is developed or provided by a Kaspersky Lab-covered entity;
- (2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or
- (3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

Kaspersky Lab-covered entity means—

- (1) Kaspersky Lab;
 - (2) Any successor entity to Kaspersky Lab, including any change in name, e.g., “Kaspersky”;
 - (3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab;
- or
- (4) Any entity of which Kaspersky Lab has a majority ownership.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

Subsidiary means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

Unmanned aircraft means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

Unmanned aircraft system means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) *Prohibitions on providing or using specific products or services in performance of contract.* Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act—covered foreign entities.

(1) Prohibition. The Contractor is prohibited from—

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) *Procedures.* The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) *Exemptions, exceptions, and waivers.* The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825

and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract.

(1) Certain telecommunications and video surveillance equipment, systems, or services.

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Office of Foreign Assets Control Restrictions.

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at <https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists>.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at <https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information>.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at <https://www.trade.gov/consolidated-screening-list>, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) *Sudan prohibition.* The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) *Iran prohibitions.*

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over \$15,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(e) *Governmentwide exclusion and removal orders.*

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f) *Reasonable inquiry.* The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(g) *Removal of prohibited products and services.* For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement

instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

(h) *General report.*

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

(i) Contract number and order number, if applicable;

(ii) The specific prohibition the product or service is not complying with;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);

(vii) Whether alternative products or services are available that would comply with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions implemented or recommended.

(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:

(i) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) *New FASCSA orders report.*

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

(i) Contract number and order number, if applicable;

(ii) Name of the covered article or source subject to a FASCSA order;

(iii) The specific FASCSA order the product or service does not comply with;

(iv) The elements of (h)(1)(iii) through (ix) of this clause.

(j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other

contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of Provision)

C.9 VAAR 852.232-72 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (NOV 2018)

(a) *Definitions.* As used in this clause—

(1) *Contract financing payment* has the meaning given in FAR 32.001;

(2) *Designated agency office* means the office designated by the purchase order, agreement, or contract to first receive and review invoices. This office can be contractually designated as the receiving entity. This office may be different from the office issuing the payment;

(3) *Electronic form* means an automated system transmitting information electronically according to the accepted electronic data transmission methods and formats identified in paragraph (c) of this clause. Facsimile, email, and scanned documents are not acceptable electronic forms for submission of payment requests;

(4) *Invoice payment* has the meaning given in FAR 32.001; and

(5) *Payment request* means any request for contract financing payment or invoice payment submitted by the contractor under this contract.

(b) *Electronic payment requests.* Except as provided in paragraph (e) of this clause, the contractor shall submit payment requests in electronic form. Purchases paid with a Government-wide commercial purchase card are considered to be an electronic transaction for purposes of this rule, and therefore no additional electronic invoice submission is required.

(c) *Data transmission.* A contractor must ensure that the data transmission method and format are through one of the following:

(1) VA's Electronic Invoice Presentment and Payment System at the current website address provided in the contract.

(2) Any system that conforms to the X12 electronic data interchange (EDI) formats established by the Accredited Standards Center (ASC) and chartered by the American National Standards Institute (ANSI).

(d) *Invoice requirements.* Invoices shall comply with FAR 32.905.

(e) *Exceptions.* If, based on one of the circumstances in this paragraph (e), the Contracting Officer directs that payment requests be made by mail, the Contractor shall submit payment requests by mail through the United States Postal Service to the designated agency office. Submission of payment requests by mail may be required for—

(1) Awards made to foreign vendors for work performed outside the United States;

(2) Classified contracts or purchases when electronic submission and processing of payment requests could compromise the safeguarding of classified or privacy information;

(3) Contracts awarded by contracting officers in the conduct of emergency operations, such as responses to national emergencies;

(4) Solicitations or contracts in which the designated agency office is a VA entity other than the VA Financial Services Center in Austin, Texas; or

(5) Solicitations or contracts in which the VA designated agency office does not have electronic invoicing capability as described above.

(End of Clause)

C.10 VAAR 852.242-71 ADMINISTRATIVE CONTRACTING OFFICER (OCT 2020)

The Contracting Officer reserves the right to designate an Administrative Contracting Officer (ACO) for the purpose of performing certain tasks/duties in the administration of the contract. Such designation will be in writing through an ACO Letter of Delegation and will identify the responsibilities and limitations of the ACO. A copy of the ACO Letter of Delegation will be furnished to the Contractor.

(End of Clause)

C.11 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>
<https://www.va.gov/oal/library/vaar/>

(End of Clause)

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT	JUN 2020
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS	NOV 2023
52.203-16	PREVENTING PERSONAL CONFLICTS OF INTEREST	JUN 2020
52.204-13	SYSTEM FOR AWARD MANAGEMENT—MAINTENANCE (DEVIATION)	NOV 2025
52.209-6	PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED	JAN 2025
52.209-10	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS	NOV 2015
52.216-32	TASK-ORDER AND DELIVERY-ORDER OMBUDSMAN (URL)	SEP 2019
52.219-6	NOTICE OF TOTAL SMALL BUSINESS SET-ASIDE (DEVIATION) ALTERNATE I (NOV 2025)	NOV 2025
52.219-8	UTILIZATION OF SMALL BUSINESS CONCERNS	NOV 2025

	(DEVIATION)	
52.219-14	LIMITATIONS ON SUBCONTRACTING (DEVIATION)	NOV 2025
52.219-28	POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION ALTERNATE I (DEVIATION) (NOV 2025)	NOV 2025
52.222-3	CONVICT LABOR (DEVIATION)	NOV 2025
52.222-36	EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES (DEVIATION)	NOV 2025
52.222-40	NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT (DEVIATION)	NOV 2025
52.222-41	SERVICE CONTRACT LABOR STANDARDS (DEVIATION)	NOV 2025
52.222-43	FAIR LABOR STANDARDS ACT AND SERVICE CONTRACT LABOR STANDARDS-PRICE ADJUSTMENT (MULTIPLE YEAR AND OPTION CONTRACTS) (DEVIATION)	NOV 2025
52.222-44	FAIR LABOR STANDARDS ACT AND SERVICE CONTRACT LABOR STANDARDS—PRICE ADJUSTMENT (DEVIATION)	NOV 2025
52.222-55	MINIMUM WAGES FOR CONTRACTOR WORKERS UNDER EXECUTIVE ORDER 14026 (DEVIATION)	NOV 2025
52.228-5	INSURANCE—WORK ON A GOVERNMENT INSTALLATION	JAN 1997
52.232-18	AVAILABILITY OF FUNDS	APR 1984
52.232-33	PAYMENT BY ELECTRONIC FUNDS TRANSFER— SYSTEM FOR AWARD MANAGEMENT	OCT 2018
52.232-36	PAYMENT BY THIRD PARTY (DEVIATION)	NOV 2025
52.233-3	PROTEST AFTER AWARD ALTERNATE I (JUN 1985)	AUG 1996
52.233-4	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM	OCT 2004
52.237-2	PROTECTION OF GOVERNMENT BUILDINGS, EQUIPMENT, AND VEGETATION	APR 1984
52.244- 6DEV	SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES	OCT 2025
852.201-70	CONTRACTING OFFICER'S REPRESENTATIVE	DEC 2022
852.203-70	COMMERCIAL ADVERTISING	MAY 2018
852.204-70	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL	MAY 2020
852.215-71	EVALUATION FACTOR COMMITMENTS	OCT 2019
852.219-70	VA SMALL BUSINESS SUBCONTRACTING PLAN MINIMUM REQUIREMENTS (DEVIATION)	JAN 2023
852.219-75	VA NOTICE OF LIMITATIONS ON SUBCONTRACTING— CERTIFICATE OF COMPLIANCE FOR SERVICES AND CONSTRUCTION (DEVIATION)	JAN 2023
852.222-71	COMPLIANCE WITH EXECUTIVE ORDER 13899 (DEVIATION) (APR 2025)	APR 2025
852.239-70	SECURITY REQUIREMENTS FOR INFORMATION TECHNOLOGY RESOURCES	FEB 2023

(End of Addendum to 52.212-4)

C.12 52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025) (DEVIATION FEB 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204–23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115–91).

(3) 52.204–25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115–232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232–40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

☒ (1) 52.203–6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with Alternate I (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

☒ (2) 52.203–13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

☐ (3) [Reserved]

☒ (4) 52.203–17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR 3.900(a).

☒ (5) 52.204–10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109–282) (31 U.S.C. 6101 note).

☐ (6) [Reserved]

☒ (7) 52.204–14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111–117, section 743 of Div. C).

☒ (8) 52.204–15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111–117, section 743 of Div. C).

☐ (9) 52.204–27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117–328).

☐ (10) 52.204–28, Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115–390, title II).

☐ (11)(i) 52.204–30, Federal Acquisition Supply Chain Security Act Orders— Prohibition. (DEC 2023) (Pub. L. 115–390, title II).

☐ (ii) Alternate I (DEC 2023) of 52.204–30.

☒ (12) 52.209–6, Protecting the Government’s Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (31 U.S.C. 6101 note).

☒ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

☐ (14) [Reserved]

☐ (15) 52.219–3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).

☐ (16) 52.219–4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

☐ (17) [Reserved]

☒ (18)(i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (MAR 2020) of 52.219-6.

☐ (19)(i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (MAR 2020) of 52.219-7.

☒ (20) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)).

☒ (21)(i) 52.219–9, Small Business Subcontracting Plan (JAN 2025) (15 U.S.C. 637(d)(4)).

☐ (ii) Alternate I (NOV 2016) of 52.219-9.

☐ (iii) Alternate II (NOV 2016) of 52.219-9.

☐ (iv) Alternate III (JAN 2025) of 52.219–9.

☐ (v) Alternate IV (JAN 2025) of 52.219–9.

☒ (22)(i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).

☐ (ii) [Reserved]

☒ (23) 52.219–14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).

☐ (24) 52.219-16, Liquidated Damages—Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).

☐ (25) 52.219–27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).

☒ (26) (i) 52.219-28, Postaward Small Business Program Rerepresentation (JAN 2025) (15 U.S.C. 632(a)(2)).

☐ (ii) Alternate I (MAR 2020) of 52.219–28.

☐ (27) 52.219–29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).

☐ (28) 52.219–30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).

☐ (29) [Reserved]

☐ (30) 52.219–33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 637(a)(17)).

☒ (31) 52.222-3, Convict Labor (JUN 2003) (E.O. 11755).

☒ (32) 52.222–19, Child Labor—Cooperation with Authorities and Remedies (JAN 2025) (E.O. 13126).

☐ (33) [Reserved]

☐ (34) [Reserved]

☒ (35)(i) 52.222–35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

☐ (ii) Alternate I (JUL 2014) of 52.222-35.

☒ (36)(i) 52.222–36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

☐ (ii) Alternate I (JUL 2014) of 52.222-36.

☒ (37) 52.222–37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

[X] (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).

[X] (39)(i) 52.222-50, Combating Trafficking in Persons (OCT 2025) (22 U.S.C. chapter 78 and E.O. 13627).

□ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

[X] (40) 52.222-54, Employment Eligibility Verification (JAN 2025). (E.O. 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

□ (41)(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (MAY 2008) (42 U.S.C.6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

□ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

□ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, *et seq.*).

□ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, *et seq.*).

□ (44) [Reserved]

□ (45) [Reserved]

[X] (46) 52.223-23, Sustainable Products and Services (MAY 2024) (DEVIATION FEB 2025) (7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671I).

□ (47)(i) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

□ (ii) Alternate I (JAN 2017) of 52.224-3.

□ (48)(i) 52.225-1, Buy American—Supplies (OCT 2022) (41 U.S.C. chapter 83).

□ (ii) Alternate I (OCT 2022) of 52.225-1.

□ (49)(i) 52.225-3, Buy American—Free Trade Agreements—Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).

□ (ii) Alternate I [Reserved].

□ (iii) Alternate II (JAN 2025) of 52.225-3.

□ (iv) Alternate III (FEB 2024) of 52.225-3.

□ (v) Alternate IV (OCT 2022) of 52.225-3.

□ (50) 52.225–5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note)

□ (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

□ (52) 52.225–26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

□ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (NOV 2007) (42 U.S.C. 5150).

□ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).

[X] (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) (E.O. 13513)

[X] (56) 52.229–12, Tax on Certain Foreign Procurements (FEB 2021).

□ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

□ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

[X] (59) 52.232-33, Payment by Electronic Funds Transfer—System for Award Management (OCT 2018) (31 U.S.C. 3332).

□ (60) 52.232-34, Payment by Electronic Funds Transfer—Other than System for Award Management (JUL 2013) (31 U.S.C. 3332).

□ (61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).

□ (62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).

□ (63) 52.240–1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act—Covered Foreign Entities (NOV 2024) (Sections 1821–1826, Pub. L. 118–31, 41 U.S.C. 3901 note prec.).

□ (64) 52.242-5, Payments to Small Business Subcontractors (JAN 2017)(15 U.S.C. 637(d)(13)).

□ (65)(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

□ (ii) Alternate I (APR 2003) of 52.247-64.

□ (iii) Alternate II (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

☒ (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

☒ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

Employee Class

Monetary Wage-Fringe Benefits

☒ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements (MAY 2014) (41 U.S.C. chapter 67).

☐ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Requirements (MAY 2014) (41 U.S.C. chapter 67).

☒ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

☒ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

☐ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792).

☐ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (JAN 2025) (49 U.S.C. 40118(g)).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records—Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR Subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after

any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause—

(i) 52.203–13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203–17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204–23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115–91).

(v) 52.204–25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115–232).

(vi) 52.204–27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117–328).

(vii) (A) 52.204–30, Federal Acquisition Supply Chain Security Act Orders— Prohibition. (DEC 2023) (Pub. L. 115–390, title II).

(B) Alternate I (DEC 2023) of 52.204–30.

(viii) 52.219–8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219–8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) [Reserved]

(x) [Reserved]

(xi) 52.222–35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(xii) 52.222–36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(xiii) 52.222–37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

(xvi)(A) 52.222-50, Combating Trafficking in Persons (OCT 2025) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (JAN 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

(xxi) 52.222-62 Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

(xxii)(A) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

(B) Alternate I (JAN 2017) of 52.224-3.

(xxiii) 52.225–26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226–6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232–40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232–40.

(xxvi) 52.240–1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act—Covered Foreign Entities (NOV 2024) (Sections 1821–1826, Pub. L. 118–31, 41 U.S.C.3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of Clause)

C.13 MANDATORY WRITTEN DISCLOSURES

Mandatory written disclosures required by FAR clause 52.203-13 to the Department of Veterans Affairs, Office of Inspector General (OIG) must be made electronically through the VA OIG Hotline at <https://www.vaoig.gov/hotline/online-forms> and clicking on "FAR clause 52.203-13 Reporting." If you experience difficulty accessing the website, call the Hotline at 1-800-488-8244 for further instructions.

SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS

D.1 BUSINESS ASSOCIATE AGREEMENT

SECTION E - SOLICITATION PROVISIONS

E.1 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (SEP 2023)

(a) *North American Industry Classification System (NAICS) code and small business size standard.* The NAICS code(s) and small business size standard(s) for this acquisition appear elsewhere in the solicitation. However, the small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

- (1) Is set aside for small business and has a value above the simplified acquisition threshold;
- (2) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or
- (3) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b) *Submission of offers.* Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. Offers may be submitted on the SF 1449, letterhead stationery, or as otherwise specified in the solicitation. As a minimum, offers must show—

- (1) The solicitation number;
- (2) The time specified in the solicitation for receipt of offers;
- (3) The name, address, and telephone number of the offeror;
- (4) A technical description of the items being offered in sufficient detail to evaluate compliance with the requirements in the solicitation. This may include product literature, or other documents, if necessary;
- (5) Terms of any express warranty;
- (6) Price and any discount terms;
- (7) "Remit to" address, if different than mailing address;
- (8) A completed copy of the representations and certifications at Federal Acquisition Regulation (FAR) 52.212-3 (see FAR 52.212-3(b) for those representations and certifications that the offeror shall complete electronically);
- (9) Acknowledgment of Solicitation Amendments;

(10) Past performance information, when included as an evaluation factor, to include recent and relevant contracts for the same or similar items and other references (including contract numbers, points of contact with telephone numbers and other relevant information); and

(11) If the offer is not submitted on the SF 1449, include a statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation. Offers that fail to furnish required representations or information, or reject the terms and conditions of the solicitation may be excluded from consideration.

(c) *Period for acceptance of offers.* The offeror agrees to hold the prices in its offer firm for 30 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(d) *Product samples.* When required by the solicitation, product samples shall be submitted at or prior to the time specified for receipt of offers. Unless otherwise specified in this solicitation, these samples shall be submitted at no expense to the Government, and returned at the sender's request and expense, unless they are destroyed during preaward testing.

(e) *Multiple offers.* Offerors are encouraged to submit multiple offers presenting alternative terms and conditions, including alternative line items (provided that the alternative line items are consistent with FAR subpart 4.10), or alternative commercial products or commercial services for satisfying the requirements of this solicitation. Each offer submitted will be evaluated separately.

(f) Late submissions, modifications, revisions, and withdrawals of offers.

(1) Offerors are responsible for submitting offers, and any modifications, revisions, or withdrawals, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that offers or revisions are due.

(2)(i) Any offer, modification, revision, or withdrawal of an offer received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and—

(A) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of offers; or

(B) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(C) If this solicitation is a request for proposals, it was the only proposal received.

(ii) However, a late modification of an otherwise successful offer, that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(3) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the offer wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(4) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(5) Offers may be withdrawn by written notice received at any time before the exact time set for receipt of offers. Oral offers in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile offers, offers may be withdrawn via facsimile received at any time before the exact time set for receipt of offers, subject to the conditions specified in the solicitation concerning facsimile offers. An offer may be withdrawn in person by an offeror or its authorized representative if, before the exact time set for receipt of offers, the identity of the person requesting withdrawal is established and the person signs a receipt for the offer.

(g) *Contract award (not applicable to Invitation for Bids)*. The Government intends to evaluate offers and award a contract without discussions with offerors. Therefore, the offeror's initial offer should contain the offeror's best terms from a price and technical standpoint. However, the Government reserves the right to conduct discussions if later determined by the Contracting Officer to be necessary. The Government may reject any or all offers if such action is in the public interest; accept other than the lowest offer; and waive informalities and minor irregularities in offers received.

(h) *Multiple awards*. The Government may accept any item or group of items of an offer, unless the offeror qualifies the offer by specific limitations. Unless otherwise provided in the Schedule, offers may not be submitted for quantities less than those specified. The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit prices offered, unless the offeror specifies otherwise in the offer.

(i) Availability of requirements documents cited in the solicitation.

(1)(i) The GSA Index of Federal Specifications, Standards and Commercial Item Descriptions, FPMR Part 101-29, and copies of specifications, standards, and product descriptions can be downloaded from the ASSIST website at <https://assist.dla.mil>.

(ii) If the General Services Administration, Department of Agriculture, or Department of Veterans Affairs issued this solicitation, a copy of specifications, standards, and commercial item descriptions cited in this solicitation may be obtained from the address in paragraph (i)(1)(i) of this provision.

(2) Most unclassified Defense specifications and standards may be downloaded from the ASSIST website at <https://assist.dla.mil>.

(3) Defense documents not available from the ASSIST website may be requested from the Defense Standardization Program Office by-

(i) Using the ASSIST feedback module (<https://assist.dla.mil/feedback>); or

(ii) Contacting the Defense Standardization Program Office by telephone at 571-767-6688 or email at assisthelp@dlamail.

(4) Nongovernment (voluntary) standards must be obtained from the organization responsible for their preparation, publication, or maintenance.

(j) *Unique entity identifier.* (Applies to all offers that exceed the micro-purchase threshold, and offers at or below the micro-purchase threshold if the solicitation requires the Contractor to be registered in the System for Award Management (SAM).) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the unique entity identifier that identifies the Offeror's name and address. The Offeror also shall enter its Electronic Funds Transfer (EFT) indicator, if applicable. The EFT indicator is a four-character suffix to the unique entity identifier. The suffix is assigned at the discretion of the Offeror to establish additional SAM records for identifying alternative EFT accounts (see FAR subpart 32.11) for the same entity. If the Offeror does not have a unique entity identifier, it should contact the entity designated at www.sam.gov for unique entity identifier establishment directly to obtain one. The Offeror should indicate that it is an offeror for a Government contract when contacting the entity designated at www.sam.gov for establishing the unique entity identifier.

(k) [Reserved]

(l) *Debriefing.* If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.

(3) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award;

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.

(6) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

(End of Provision)

ADDENDUM to FAR 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

Provisions that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following provisions are incorporated into 52.212-1 as an addendum to this solicitation:

E.2 52.201-1 ACQUISITION 360: VOLUNTARY SURVEY (SEP 2023)

(a) All actual and potential offerors are encouraged to provide feedback on the preaward and debriefing processes, as applicable. Feedback may be provided to agencies up to 45 days after award. The feedback is anonymous, unless the participant self-identifies in the survey. Actual and potential offerors can participate in the survey by selecting the following link: <https://www.acquisition.gov/360>.

(b) The Contracting Officer will not review the information provided until after contract award and will not consider it in the award decision. The survey is voluntary and does not convey any protections, rights, or grounds for protest. It creates a way for actual and potential offerors to provide the Government constructive feedback about the preaward and debriefing processes, as applicable, used for a specific acquisition.

(End of Clause)

E.3 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) *Definitions.* As used in this provision—

"Administrative proceeding" means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

"Federal contracts and grants with total value greater than \$10,000,000" means—

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

"Principal" means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [] has [] does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of Provision)

E.4 52.212-2 EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

Technical Capability and Approach

Past Performance

Cost - Less important than Evaluation Factors 1 and 2

Technical and past performance, when combined, are equal to price.

(b) *Options*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of Provision)

E.5 52.216-1 TYPE OF CONTRACT (NOV 2025) (DEVIATION)

The Government contemplates award of a Firm-Fixed-Price, Indefinite Quantity contract resulting from this solicitation.

(End of Provision)

E.6 52.233-2 SERVICE OF PROTEST (SEP 2006)

Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

Hand-Carried Address:

Department of Veterans Affairs

VAMC (512)
Contracting (19ACQ)
10 N Greene St
Baltimore MD 21201
Mailing Address:

Department of Veterans Affairs

VAMC (512)
Contracting (19ACQ)
10 N Greene St
Baltimore MD 21201

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of Provision)

E.7 52.240-90 SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS (NOV 2025) (DEVIATION)

(a) *Definitions.* As used in this provision—

Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

Marginalized populations of Sudan means—

(1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and

(2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education;
or

(6) Have been voluntarily suspended.

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) Procedures.

(1) *Covered telecommunications and video surveillance.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(2) FASCSA Orders.

(i) The Offeror shall search in SAM for the phrase “FASCSA order” for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) Covered telecommunications equipment or services representations. By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror’s possession but does not need to include an internal or third-party audit)—

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) FASCSA Representation. By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror’s possession but does not need to include an internal or third-party audit.

(e) Sudan certification. By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror’s possession but does not need

to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) *Iran Representation and Certifications.*

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), by submission of its offer—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds \$15,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(iii) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(g) *Disclosure.*

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

(i) Contract number and order number, if applicable;

(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);

(vii) Whether alternative products or services are available that would be compliant with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions undertaken or recommended.

(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:

(i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.

(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.

(h) *Executive agency review of disclosures.* The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of Provision)

FAR

Title

Date

Number

852.233-70

PROTEST CONTENT/ALTERNATIVE DISPUTE
RESOLUTION

OCT 2018

E.8 VAAR 852.233-71 ALTERNATE PROTEST PROCEDURE (OCT 2018)

(a) As an alternative to filing a protest with the Contracting Officer, an interested party may file a protest by mail or electronically with: Executive Director, Office of Acquisition and Logistics, Risk Management and Compliance Service (003A2C), Department of Veterans Affairs, 810 Vermont Avenue NW, Washington, DC 20420 or Email: *EDProtests@va.gov*.

(b) The protest will not be considered if the interested party has a protest on the same or similar issue(s) pending with the Contracting Officer.

(End of Provision)

PLEASE NOTE: The correct mailing information for filing alternate protests is as follows:

Deputy Assistant Secretary for Acquisition and Logistics,
Risk Management Team, Department of Veterans Affairs
810 Vermont Avenue, N.W.
Washington, DC 20420

Or for solicitations issued by the Office of Construction and Facilities Management:

Director, Office of Construction and Facilities Management
811 Vermont Avenue, N.W.
Washington, DC 20420

**E.9 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY
REFERENCE (FEB 1998)**

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>
<https://www.va.gov/oal/library/vaar/>

(End of Provision)

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.203-11	CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	SEP 2024
52.204-7	SYSTEM FOR AWARD MANAGEMENT—REGISTRATION	NOV 2025

52.207-6	(DEVIATION) SOLICITATION OF OFFERS FROM SMALL BUSINESS CONCERNS AND SMALL BUSINESS TEAMING ARRANGEMENTS OR JOINT VENTURES (MULTIPLE- AWARD CONTRACTS)	AUG 2024
52.229-11	TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE AND REPRESENTATION	JUN 2020
852.215-72	NOTICE OF INTENT TO RE-SOLICIT	OCT 2019
852.239-71	INFORMATION SYSTEM SECURITY PLAN AND ACCREDITATION	FEB 2023
852.239-75	INFORMATION AND COMMUNICATION TECHNOLOGY ACCESSIBILITY NOTICE	FEB 2023
(End of Addendum to 52.212-1)		

E.10 52.212-3 OFFEROR REPRESENTATIONS AND CERTIFICATIONS— COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025) (DEVIATION FEB 2025)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through <https://www.sam.gov>. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) *Definitions.* As used in this provision—

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR 127, and the concern is identified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service—

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: Ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except—

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204–25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern—

(1)(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that—

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that—

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by—

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned—

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation.

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term “successor” does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern—

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women.

Women-owned small business concern means a small business concern—

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)(1) Annual Representations and Certifications. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212–3, Offeror Representations and Certifications—Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs .

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) *Small business concern*. The offeror represents as part of its offer that—

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). *[The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]*

(2) *Veteran-owned small business concern.* *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) *SDVOSB concern.* *[Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.]* The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program.* The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. *[Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]*

(5) *Small disadvantaged business concern.* *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) *Women-owned small business concern.* *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* *[Complete only if the offeror represented itself as a women-owned small business concern in paragraph (c)(5) of this provision.]* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). *[The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]*

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR part 127.506(a) through (c). *[The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]*

Note to Paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* *[Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents that it ☐ is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price:

(11) *HUBZone small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that—

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR Part 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) [Reserved]

(e) *Certification Regarding Payments to Influence Federal Transactions* (31 U.S.C. 1352). (Applies only if the contract is expected to exceed \$200,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate.* (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American—Supplies, is included in this solicitation.)

(1)(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select “no”.

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” “foreign end product,” and “United States” are defined in the clause of this solicitation entitled “Buy American—Supplies.”

(2) Foreign End Products:

Line item No.	Country of origin	Exceeds 55% domestic content (yes/no)

[List as necessary]

(3) Domestic end products containing a critical component: Line Item No. _____

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)(1) *Buy American—Free Trade Agreements—Israeli Trade Act Certificate.* (Applies only if the clause at FAR 52.225-3, Buy American—Free Trade Agreements—Israeli Trade Act, is included in this solicitation.)

(i)(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms “Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product,” “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” “foreign end product,” “Free Trade Agreement country,” “Free Trade Agreement country end product,” “Israeli end product,” and “United States” are defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act.”

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act.”

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line item No.	Country of origin

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act.” The Offeror shall list as other foreign

end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select “no”.

Other Foreign End Products:

Line item No.	Country of origin	Exceeds 55% domestic content (yes/no)

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105). Line Item No. _____

[List as necessary]

(v) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(2) *Buy American—Free Trade Agreements—Israeli Trade Act Certificate, Alternate II.* If *Alternate II* to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Israeli End Products:

Line item No.	Country of origin

[List as necessary]

(3) *Buy American—Free Trade Agreements—Israeli Trade Act Certificate, Alternate III.* If *Alternate III* to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms “Korean end product”, “commercially available off-the shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” “foreign end product,” “Free Trade Agreement country,” “Free Trade Agreement country end product,” “Israeli end product,” and “United States” are defined in the clause of this solicitation entitled “Buy American— Free Trade Agreements—Israeli Trade Act.”

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Korean End Products or Israeli End Products:

Line item No.	Country of origin

[List as necessary]

(4) *Trade Agreements Certificate*. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled “Trade Agreements”.

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line item No.	Country of origin

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR Part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters* (Executive Order 12689). (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals—

(1) ☐ Are, ☐ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) ☐ Have, ☐ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the

submission of offers; or Commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) [] Are, [] are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) [] Have, [] have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104–5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples.*

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. Sec. 6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. Sec. 6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. Sec. 6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. 362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126).*

(1) *Listed end products.*

Listed end product	Listed countries of origin

(2) *Certification.* [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

☐ (i) The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.

☐ (ii) The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly—

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards.* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

☐ (1) Maintenance, calibration, or repair of certain equipment as described in FAR 22.1003-4(c)(1). The offeror ☐ does ☐ does not certify that—

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003- 4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

☐ (2) Certain services as described in FAR 22.1003- 4(d)(1). The offeror ☐ does ☐ does not certify that—

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies—

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN)* (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the

TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN).*

☐ TIN: _____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization.*

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR 1.6049-4;

☐ Other _____.

(5) *Common parent.*

☐ Offeror is not owned or controlled by a common parent;

☐ Name and TIN of common parent:

Name _____.

TIN _____.

(m) *Restricted business operations in Sudan.* By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) *Prohibition on Contracting with Inverted Domestic Corporations.*

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted

domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) *Representation.* The Offeror represents that—

- (i) It [] is, [] is not an inverted domestic corporation; and
- (ii) It [] is, [] is not a subsidiary of an inverted domestic corporation.

(o) *Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.*

(1) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and certifications.* Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703–2(a)(2) with Iran’s Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 *et seq.*) (see OFAC’s Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if—

(i) This solicitation includes a trade agreements certification (e.g., 52.212–3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror.* (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it [] has or [] does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates “has” in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: ____.

Immediate owner legal name: ____.

(Do not use a “doing business as” name)

Is the immediate owner owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the Offeror indicates “yes” in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: ____.

Highest-level owner legal name: ____.

(Do not use a “doing business as” name)

(q) Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that—

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that—

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) Predecessor of Offeror. (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated “is” in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: _____ (or mark “Unknown”).

Predecessor legal name: _____.

(Do not use a “doing business as” name).

(s) [Reserved]

(t) [Reserved]

(u)(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) Representation. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services—Representation.* Section 889(a)(1)(A) and section 889(a)(1)(B) of [Public Law 115-232](#).

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered telecommunications equipment or services”.

(2) The Offeror represents that—

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it [] does, [] does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)